

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2606

By: Harris

AS INTRODUCED

An Act relating to domestic violence; directing the District Attorneys Council to develop and implement a domestic violence forensic exam pilot program; stating purpose of pilot program; authorizing certain counties to participate in pilot program; establishing the Domestic Violence Examination Fund; stating purpose of fund; defining terms; directing the Crime Victims Compensation Board to establish procedures for disbursing funds; providing limitations on amounts disbursed; stating requirements for claims; authorizing the District Attorneys Council to transfer funds; authorizing the Legislature to appropriate money to the Domestic Violence Examination Fund; authorizing the Council to make contracts, execute documents, or perform acts to carry out the pilot program; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 421.21 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. Contingent upon the availability of funds, the District Attorneys Council shall develop and implement a five-year Domestic Violence Forensic Exam Pilot Program. The purpose of the Domestic

1 Violence Forensic Exam Pilot Program shall be to provide counties  
2 with qualified licensed health care professionals who shall conduct  
3 domestic violence forensic exams for victims of domestic violence  
4 assault. Counties with a population of more than one hundred  
5 thousand (100,000) according to the latest Federal Decennial Census  
6 may participate in the pilot program. In conjunction with the  
7 Domestic Violence Forensic Exam Pilot Program, a Domestic Violence  
8 Examination Fund shall be established in each participating county  
9 for the purpose of providing to a victim of domestic violence  
10 assault, a forensic medical examination by a qualified licensed  
11 health care professional.

12 B. As used in this section:

13 1. "Domestic violence" means any act of physical harm or the  
14 threat of imminent physical harm which is committed by an adult,  
15 emancipated minor, or minor child thirteen (13) years of age or  
16 older against another adult, emancipated minor, or minor child who  
17 is currently or was previously an intimate partner or family or  
18 household member;

19 2. "Intimate partner" means:

- 20 a. current or former spouses,
- 21 b. persons who are in a dating relationship,
- 22 c. persons who are the biological parents of the same  
23 child, regardless of marital status or whether they  
24 have lived together at any time, and

1           d.   persons who currently or formerly lived together in an  
2               intimate way, primarily characterized by affectionate  
3               or sexual involvement. A sexual relationship may be  
4               an indicator that a person is an intimate partner, but  
5               is never a necessary condition;

6       3. "Living in the same household" means:

7           a.   persons who regularly reside in the same single-  
8               dwelling unit,

9           b.   persons who resided in the same single-dwelling unit  
10              within the past year, or

11          c.   persons who have individual lease agreements whereby  
12               each person has his or her own private bedroom and  
13               shares common areas; and

14       4. "Qualified licensed health care professional" means a  
15   physician, registered nurse, or other licensed health care  
16   professional qualified by completion of a forty-hour didactic  
17   domestic violence examiners course, as well as successful completion  
18   of clinical competence.

19       C. The Crime Victims Compensation Board shall establish the  
20   procedures for disbursement of the Domestic Violence Examination  
21   Fund, but in no event shall the Crime Victims Compensation Board pay  
22   an amount to exceed Two Hundred Dollars (\$200.00) for a domestic  
23   violence forensic exam. Such payments shall not exceed the amounts  
24   specified by this subsection regardless of the amount of any

1 individual bills comprising the claim. Payments shall be made only  
2 upon claims signed by the victim or guardian and qualified licensed  
3 health care professional.

4 D. The District Attorneys Council is hereby authorized to  
5 transfer funds, as specified in the appropriations bill annually,  
6 from the Crime Victims Compensation Fund to the Domestic Violence  
7 Examination Fund for the payment of domestic violence forensic  
8 exams, pursuant to this section.

9 E. The District Attorneys Council shall have the authority to  
10 make any contract, execute any document, or perform any act in order  
11 to carry out the Domestic Violence Forensic Exam Pilot Program.

12 F. Nothing in this section shall prevent the Legislature from  
13 appropriating funds to the Domestic Violence Examination Fund for  
14 the payment of domestic violence forensic examinations.

15 SECTION 2. This act shall become effective November 1, 2025.

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